

NEW OR RENEWAL
LIQUOR LICENSE OR
PERMIT APPLICATION

(State of Wyoming-County and Municipal Jurisdictions)

FOR LIQUOR DIVISION USE ONLY		
Customer #:		
Transf. from:		
1 st Reviewer:		/ /
2 nd Reviewer:		/ /

CLERK SECTION: Completed by City / Town / County Clerk		Local License # 34	
Filing In Jurisdiction: ☒ CITY or TOWN OF: Cheyenne ☐ COUNTY OF:		Date filed with clerk: 11 / 19 / 2025 Advertising Dates: (Minimum 2 Consecutive Weeks Prior to Hearing) 11 / 24 / 2025 & 12 / 3 / 2025 Public Hearing Date: 12 / 8 / 2025 Publishing Fee: \$ 100.00 Publishing Fee Direct Billed to Applicant: ☐	
Fees Annual License Fee: \$ Prorated License Fee: \$ Transfer Fee: \$ 100.00			
License Term: upon / issuance Month / Day / Year Through 3 / 31 / 2026 Month / Day / Year			
LICENSING AUTHORITY CLERK: BEGIN ADVERTISING PROMPTLY! PER W.S. 12-4-104(d): IMMEDIATELY FORWARD A COPY OF THE APPLICATION AND ALL ATTACHEMENTS TO THE DIVISION NO LICENSING AUTHORITY SHALL APPROVE OR DENY AN APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.			
SECTION 1: APPLICANT & LOCATION INFORMATION			
Applicant (Business Name): Cheyenne GS, LLC Doing Business As (DBA) / Trade Name: Hi Market Cheyenne Building to be licensed / Building Address: 215 E. Lincolnway (Address Number, and Suite or Unit Number, and Street or Road Name) Cheyenne WY 82001 Laramie City State Zip County Local Mailing Address: 215 E. Lincolnway (Address Number or PO Box, and Suite or Unit Number, and Street or Road Name) Cheyenne WY 82001 USA City State Zip County Business Telephone Number: 307-637-5436 Fax Number: Business E-Mail Address: billing@himarketstores.com & fcasside@gmail.com Business Primary Contact: Sukhpreet Bajwa First Name Last Name			
SECTION 2: FILING AS (CHOOSE ONLY ONE)			
☐ INDIVIDUAL ☐ GENERAL PARTNERSHIP ☐ LP ☐ LLP ☐ LLLP ☒ LLC ☐ LC ☐ CORPORATION (INC) ☐ NON-PROFIT CORPORATION (NCORP) ☐ POLITICAL SUBDIVISION ☐ ORGANIZATION ☐ OTHER			
SECTION 3: FILING FOR (CHOOSE ONLY ONE)			
☐ NEW LICENSE OR PERMIT ☐ RENEWAL OF LICENSE OR PERMIT ☐ TRANSFER OF LOCATION ☐ TRANSFER OF OWNERSHIP* ☒ TRANSFER OF OWNERSHIP* and LOCATION *For a Transfer of Ownership: Attach a Form of Assignment Formerly Held by: Scooters Scoreboard Inc			
SECTION 4: TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)			
(a) Licenses and Permits Authorized for On-Premise Sales and Off-Premise Package Sales ☒ RETAIL LIQUOR LICENSE ☐ COUNTY MALT BEVERAGE PERMIT ☐ MICROBREWERY PERMIT ☐ WINERY PERMIT ☐ WINERY SATELLITE PERMIT ☐ MANUFACTURER SATELLITE PERMIT (i) Primary Business Type (CHOOSE ONLY ONE) (W.S. 12-6-101(c)(vi)) ☐ ON-PREMISE: BAR ☐ OFF-PREMISE: PACKAGE STORE ☒ ON & OFF PREMISE: BAR & PACKAGE STORE (b) Licenses and Permits Authorized for ONLY On-Premise Sales ☐ RESTAURANT LIQUOR LICENSE ☐ BAR AND GRILL LIQUOR LICENSE ☐ SPECIAL MALT BEVERAGE PERMIT ☐ RESORT LIQUOR LICENSE ☐ RESORT HOTEL LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE-SKI RESORT LIMITED RETAIL LIQUOR LICENSE (CLUB) ☐ GOLF CLUB ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ SOCIAL CLUB			
SECTION 5: SPECIAL STATUTORY DESIGNATIONS-ONLY COMPLETE IF APPLICABLE (CHOOSE ONLY ONE)			
☐ COMMERCIAL AIRPORT (W.S. 12-4-201(d)(iv)) ☐ GOLF CLUB (W.S. 12-5-201(f)) ☐ GUEST RANCH (W.S. 12-5-201(f)) ☐ Other:			
SECTION 6: OPERATIONAL STATUS (W.S. 12-1-101(a)(xxi) / 12-2-301(c) / 12-4-103(a)(iv)) and to assist the Liquor Division with Scheduling Inspections)			
☐ SEASONAL ☐ NON-OPERATIONAL / PARKED		MONTHS OF OPERATION: from Jan 1 to Dec 31 ☒ All Year (Jan-Dec) DAYS OF WEEK OF OPERATION: from to ☒ Every Day (Mon-Sun) HOURS OF OPERATION: from 10am to 2am ☐ 24 Hours a Day	

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 3

1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)

Does the Applicant own or lease the licensed building?

- (a)

The Applicant OWNS the licensed building.

☐ YES (own)
- (b)

The Applicant LEASES the licensed building.

☒ YES (lease)

If the building is leased, attach a copy of the lease agreement and complete (i) through (iii) below:

- (i)

The lease term expiration date is: 05 / 31 / 2026 or, ☐ Does not expire / Automatically Renews.

Note: The lease term MUST continue at least through the term of the liquor license or permit.

- (ii)

The lease term information is located on page(s) 4 paragraph(s) 2

- (iii)

Sales provision for alcoholic or malt beverages: located, on page(s) paragraph(s) Amendment

Note: The lease MUST contain a provision specifically allowing the SALE OF ALCOHOLIC or MALT BEVERAGES.

- (c)

RENEWAL ONLY: The lease is current and on file with the Licensing Authority.

☐ YES ☐ NO
- (i)

If NO to (c), attach a copy of the current lease agreement and complete 1.(b), (i) through (iii)

2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)

- (a)

To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building?

☐ YES ☒ NO
- (b)

If the answer was YES to 2(a) above, attach a written explanation and copies of any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a)

Hold any interest in the license/permit applied for?

☐ YES ☒ NO
- (b)

Furnish by way of loan or any other money or financial assistance for purposes hereof in the business?

☐ YES ☒ NO
- (c)

Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO
- (d)

If the answer was YES to any of the above questions, attach a written explanation and copies of any documents in connection there within.

QUESTIONS 4-16 AND SIGNATURE PAGE: COMPLETED BY THE APPLICANT AS APPLICABLE

4. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)

- (a)

Will food and beverage services be contracted or subcontracted?

☐ YES ☐ NO
- (i)

If YES, is a copy of the food and beverage contract or lease attached?

☐ YES ☐ NO
- (ii)

RENEWAL ONLY: The contract or subcontract is current and on file with the Licensing Authority.

☐ YES ☐ NO
- (iii)

If NO to (a) (ii), attach a copy of the current contract or subcontract.

5. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)

Is a copy of the valid food service permit or the approved permit application attached?

☐ YES ☐ NO

6. RESTAURANT LIQUOR LICENSE-RENEWAL ONLY: W.S. 12-4-407(a) / W.S. 12-4-408

- (a)

Gross sales figures and percentages of income derived from:

(Line 1) Liquor Sales:

\$

() %

(Line 2) Food Sales:

\$

() %

(Line 1 + Line 2 must = Line 3)

(Line 3) Gross Sales:

\$

() %

7. BAR AND GRILL LICENSE LIQUOR LICENSE-RENEWAL ONLY: W.S. 12-4-413(a) / W.S. 12-4-413(h),(i),(k)

- (a)

Gross sales figures and percentages of income derived from:

(Line 1) Liquor Sales:

\$

() %

(Line 2) Food Sales:

\$

() %

(Line 3) Entertainment Sales:

\$

() %

(Line 1 + Line 2 + Line 3 must = Line 4)

(Line 4) Gross Sales:

\$

() %

8. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-405

Does the resort complex:

- (a)

Have an actual valuation of at least one million dollars, or have committed or expended not less than one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i)

☐

YES

☐

NO
- (b)

Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐

YES

☐

NO
- (c)

Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii)

☐

YES

☐

NO
- (d)

If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00) on the facility? W.S. 12-4-401(b)(iv)

☐

YES

☐

NO
- (e)

Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b)

☐

YES

☐

NO
- (i)

If YES to (e), attach a copy of the contract or subcontract.
- (ii)

RENEWAL ONLY: The contract or subcontract is current and on file with the Licensing Authority.

☐

YES

☐

NO
- (iii)

If NO to (e) (ii), attach a copy of the current contract or subcontract.

9. RESORT HOTEL LIQUOR LICENSE: W.S. 12-4-416 / W.S. 12-4-403 through W.S. 12-4-405

Does the resort hotel:

- (a)

Have an actual valuation of at least five million dollars, or have committed or expended at least five million dollars (\$5,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-416(b)(i)

☐

YES

☐

NO
- (b)

Include a full-service restaurant? W.S. 12-4-416(b)(ii)

☐

YES

☐

NO
- (c)

Include not less than twenty (20) sleeping rooms for short-term occupancy? W.S. 12-4-416(b)(iii)

☐

YES

☐

NO
- (d)

Provide dining services to guest rooms for not less than twelve (12) hours each day? W.S. 12-4-416(b)(iv)

☐

YES

☐

NO
- (e)

Provide facilities to accommodate business meetings for not less than fifty (50) participants? W.S. 12-4-416(b)(v)

☐

YES

☐

NO
- (f)

Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b)

☐

YES

☐

NO
- (i)

If YES to (f), attach a copy of the contract or subcontract.
- (ii)

RENEWAL ONLY: The contract or subcontract is current and on file with the Licensing Authority.

☐

YES

☐

NO
- (iii)

If NO to (f) (ii), attach a copy of the current contract or subcontract.

10. MICROBREWERY PERMIT:

WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a)

Will or does the microbrewery at this location self-distribute its products or distribute through a licensed wholesaler?

☐

YES

☐

NO

If YES to (a); contact the Wyoming Liquor Division for further information.

RENEWAL ONLY: PRODUCTION REQUIREMENTS: W.S. 12-1-101(a)(xix)
- (b)

Malt Beverage Production

Minimum barrel production required for the current license term: 50.00

(i)

Barrels produced to date for the current license term:

(ii)

Variance:
- (c)

Will the microbrewery at this location have produced at least 50 barrels (1,550 gallons) but less than 50,000 barrels (1, 550,000 gallons) by the end of the current license term as required by law?

☐

YES

☐

NO

(i)

If NO to (c), attach a written explanation.

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE: FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a)

Has the fraternal organization been actively operating in at least thirty-six (36) states?

☐

YES

☐

NO
- (b)

Has the fraternal organization been actively in existence for at least twenty (20) years?

☐

YES

☐

NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE: VETERANS CLUBS W.S. 12-1-101(a)(iii)(A)

- (a)

Does the Veteran's organization hold a charter by the Congress of the United States?

☐

YES

☐

NO
- (b)

Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary?

☐

YES

☐

NO

13. LIMITED RETAIL (CLUB) LIQUOR LICENSE: GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e)

- (a)

Does the golf club have more than fifty (50) bona fide members?

☐

YES

☐

NO
- (b)

Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse?

☐

YES

☐

NO
- (c)

Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course?

☐

YES

☐

NO

(i)

Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e)

☐

YES

☐

NO

(ii)

If YES, is a copy of the food and beverage contract or lease attached?

☐

YES

☐

NO

(iii)

RENEWAL ONLY: The contract or subcontract is current and on file with the Licensing Authority.

☐

YES

☐

NO

(iv)

If NO to (c) (iii), attach a copy of the current contract or subcontract.

14. LIMITED RETAIL (CLUB) LIQUOR LICENSE: SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b)

(a)

Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located?

☐ YES ☐ NO

(b)

Is the club incorporated and operating solely as a nonprofit organization under the laws of this state?

☐ YES ☐ NO

(c)

Is the club qualified as a tax-exempt organization under the Internal Revenue Service?

☐ YES ☐ NO

(d)

Has the club been in continuous operation for a period of not less than one (1) year?

☐ YES ☐ NO

(e)

Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues?

☐ YES ☐ NO

(f)

Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club?

☐ YES ☐ NO

(g)

Is a true copy of the club bylaws attached to this application?

☐ YES ☐ NO

(h)

Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached)

☐ YES ☐ NO

(i)

If YES to (h), attach a copy of the Petition(s).

15. For Applicants Filing As: Individual, General Partnership, Political Subdivision, Organization or Other: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or officer (as applicable) listed below must complete all of the information below.

(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					Any Felony under Wyoming law?	Any Violation under Wyoming law relating to the sale or manufacture of Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

16. For Applicants Filing As: Corporation (INC), Limited Company (LC), Limited Liability Company (LLC), Limited Liability Partnership (LLLP) or Limited Partnership (LP): W.S. 12-4-102(a)(iv) & (v)

(a)

Is the Applicant Registered and Active with the Wyoming Secretary of State as required per W.S. 12-4-103(a)(x) or as otherwise required by Wyoming state laws?

☒ YES ☐ NO ☐ NOT APPLICABLE

List below: Each Officer, Director, stockholder, legal entity or member holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member listed below must complete all of the information below.

(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						Any Felony under Wyoming law?	Any Violation under Wyoming law relating to the sale or manufacture of Alcoholic Liquor or Malt Beverages?
Sukhpreet Bajwa Haan Enterprises Inc.		Hwy 119 Ste A. Black Hawk CO 80422	510- 676- 4439	8	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

FILING FOR: NEW, OR ANY TYPE OF TRANSFER

- ☒
- A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☒
- If Filing For a Transfer of Ownership: Attach a form of assignment from the current licensee assigning the current license or permit to the new Applicant. W.S. 12-4-601(b).
- ☒
- A copy of any lease agreement(s). W.S. 12-4-103(a)(iii)
- ☐
- Bar & Grill and Restaurant liquor license Applicants: Attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐
- If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement. W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐
- If filing for a Limited Retail Liquor License, operating as a Golf Club or Social Club, attach a copy of the club's bylaws including membership criteria. W.S. 12-4-301(c)
- ☐
- If filing for a Microbrewery Permit or Winery Permit: Attach a copy of the approved Federal TTB Permit.
- ☐
- If a current licensee is filing for a new, different license or permit: Attach a statement indicating the status of the current license or permit if the new license or permit is approved.

FILING FOR: RENEWAL

- ☐
- A copy of any new or updated lease agreement(s) if not currently on file with the Licensing Authority. W.S. 12-4-103(a)(iii)
- ☐
- Bar & Grill and Restaurant liquor license Applicants: Attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐
- If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement if the agreement on file with the Licensing Authority is not current. W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)

OATH OR VERIFICATION W.S. 12-4-102(b)

Requires signatures by:

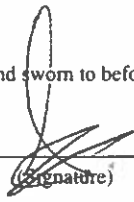
ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or ONE (1) Officer or Director, or Member of an Organization or Association.

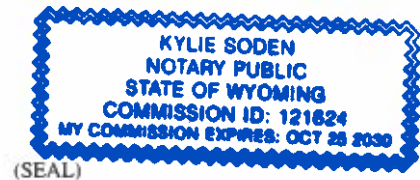
Any individual who signs the application must also be listed on Question 15 or Question 16 as applicable or additional documentation must be provided confirming legal authority to sign the application on behalf of the Applicant.

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
COUNTY OF Teton) SS.

Signed and sworn to before me on this 19th day of November, 2025 that the facts alleged in the foregoing instrument are true by the following:

1)	 (Signature)	<u>SUKHPREET BAJWA</u> (Printed Name)	<u>MANAGING MEMBER</u> Title
2)	 (Signature)	 (Printed Name)	 Title
3)	 (Signature)	 (Printed Name)	 Title
4)	 (Signature)	 (Printed Name)	 Title
5)	 (Signature)	 (Printed Name)	 Title



Witness my hand and official seal:


Signature of Notary Public

My commission expires: Oct. 28, 2030

November 19, 2025

Mayor and Members of the Cheyenne City Council
c/o City Clerk, Division of City Clerk
2101 O'Neil Avenue, Room 101
Cheyenne, WY 82001

Re: Request for Approval: Transfer of Retail Liquor License #34 to Cheyenne GS, LLC dba Hi Market Cheyenne

Honorable Mayor and Council Members:

Cheyenne GS, LLC (dba Hi Market Cheyenne) respectfully requests approval to transfer ownership of Retail Liquor License #34 from Scooters Scoreboard Inc. to Cheyenne GS, LLC for use at 215 E. Lincolnway, Cheyenne, WY 82001. We are seeking the license for package and bar. We will begin with package and eventually expand location to a package and bar.

Premises & Tenancy:

Hi Market Cheyenne operates at 215 E. Lincolnway under a long-standing lease that has been assigned to Cheyenne GS, LLC and is in force. The landlord has certified the lease is current and that the term runs to May 31, 2026. A lease addendum expressly authorizing the retail sale of alcoholic and malt beverages is enclosed, which we will reference on the City application as the "Sales Provision" page/paragraph.

Compliance & Operations:

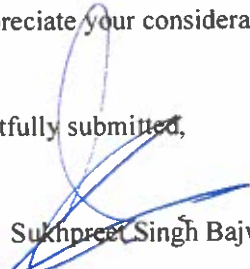
We will comply with all City ordinances, including the sign code and zoning. Our Alcohol Server Training Program (summary enclosed) requires every employee engaged in alcohol sales to complete a nationally recognized program (e.g., TIPS or ServSafe Alcohol) before working unsupervised, with periodic refreshers and documented incident/refusal logs. A floor plan (11"×17") identifying all alcohol display, checkout, storage, and access points is enclosed.

Transaction Background:

Cheyenne GS, LLC and Scooters Scoreboard Inc. have executed an agreement for the sale of Retail Liquor License #34, and the current licensee has provided an assignment/request letter asking the Governing Body to approve the transfer. Any required City/State transfer fees will be paid at or before closing.

We appreciate your consideration and would welcome the opportunity to address any questions at the public hearing.

Respectfully submitted,



Sukhpreet Singh Bajwa

Managing Member, Cheyenne GS, LLC (dba Hi Market Cheyenne)

(510) 676-4439

preet@himarketstores.com

ASSIGNMENT AND ASSUMPTION OF LEASE

THIS ASSIGNMENT AND ASSUMPTION OF LEASE ("Assignment"), is made and is effective as of the 7th day of April, 2022, between KUM & GO, L.C., an Iowa limited liability company (the "Assignor") and CHEYENNE GS, LLC, a Wyoming limited liability company, ("Assignee").

RECITALS

- A. Assignor and Boulder GS Properties, LLC, an affiliate of Assignee ("Boulder GS") have entered into an Asset Purchase Agreement dated May 18, 2021, pursuant to which Boulder GS agreed to purchase, and Assignor, agreed to sell, certain of its real property and/or business operations located in Wyoming.
- B. Assignor is the current lessee of real property located at 215 Lincolnway, Cheyenne, WY 82001, a/k/a Kum & Go #956 (the "Premises"), under that certain lease dated May 29, 1982 between CTC EL MONTE LLC, a Washington limited liability company, as successor to David E. Thulin (the "Landlord") and Assignor as successor to Wymodak, Inc., a Florida corporation (the "Lease").
- C. Assignor desires to assign all of its right, title and interest, as Tenant, in and to the Lease to Assignee, as the assignee of the rights of Boulder GS under the Purchase Agreement, and Assignee desires to accept such assignment and assume the obligations of Assignor under the Lease. Assignee acknowledges that it has received and reviewed a copy of the Lease as attached hereto and is familiar with its terms.

AGREEMENT

FOR VALUABLE CONSIDERATION, the receipt and sufficiency of which are hereby acknowledged, the parties hereby agree as follows:

- 1. Recitals. The Recitals set forth above are incorporated by this reference.
- 2. Assignment. Assignor transfers, assigns and sets over to Assignee all the right, title and interest of Assignor, as lessor, in and to the Lease.
- 3. Acceptance and Assumption. Assignee accepts the assignment made in Paragraph 2 above and assumes and agrees to perform and keep all of the premises, covenants, conditions, agreements and obligations of Assignor as lessee under the Lease for obligations arising from and after the execution of this Assignment of Assignee.
- 4. Estoppel. Assignor hereby certifies each of the following:
 - a. Rental under the Lease has been paid through April 30, 2022. No rent has been paid more than thirty (30) days in advance, except as described in the preceding sentence. The monthly base rental amount as of the date hereof is \$6203.67.

- b. The term of the Lease terminates on May 31, 2026.
- c. Assignor is not in default under any term of the Lease.
- d. The Landlord, to the best of Assignor's knowledge and belief without any independent investigation, is not in default under any terms of the Lease.
- e. The Lease is in full force and effect and there have been no modifications or modifications or amendments unless attached hereto.
- f. Exhibit A is a true and correct copy of the Lease with all amendments thereto.

5. Binding Effect. This Assignment and Assumption of Lease and each and every part hereof shall be binding upon and inure to the benefit of the Assignee, the Assignor, and their respective successors and assigns. This Assignment and Assumption of Lease is made and delivered and, in all respects, shall be governed by the laws of the State of Wyoming. This Assignment and Assumption of Lease may be executed in any number of counter parts, each of which shall be deemed an original, but all of which is together shall constitute one and the same agreement.

6. Electronic Signature. For purposes of executing this Assignment and Assumption of Lease, a facsimile signature, a PDF or similar reproduction of a manual signature, or a DocuSign or similar electronic signature shall each be deemed as effective as an original signature.

[Signature Page Follows]

IN WITNESS WHEREOF, this instrument is executed as of the day and year aforesaid.

KUM & GO, L.C.

CHEYENNE GS, LLC

By: Niki Mason
Name: Niki Mason
Title: SVP, Store Development

By: [Signature]
Name: Sukhpreet Singh Bajwa
Title: CEO

STATE OF Iowa)
) ss.

COUNTY OF Polk)

The foregoing instrument as acknowledged before me this 2nd day of May, 2022, by Niki Mason as the SVP, Store Development of Kum & Go, L.C., an Iowa limited liability company.

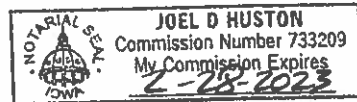
Witness my hand and official seal.

My commission expires: 2-28-2023

[Signature]
Notary Public

STATE OF COLORADO)
) ss.

COUNTY OF Denver)

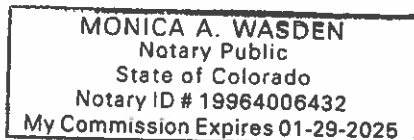


The foregoing instrument as acknowledged before me this 14 day of April, 2022, by Sukhpreet Singh Bajwa as the CEO of Cheyenne GS, LLC, a Wyoming limited liability company.

Witness my hand and official seal.

My commission expires: 1/29/2025

[Signature]
Notary Public



LANDLORD CONSENT

The undersigned Landlord hereby consents to the aforesaid assignment of the Lease by Assignor and the assumption of Lease by Assignee. Assignor shall remain liable for the obligations of the tenant/lessee under the Lease until the end of the existing term thereof, as further provided in Section 3 of the Amendment to Lease Agreement dated effective as of September, 10, 2021 between Landlord Assignor, and Boulder GS Properties, LLC, an affiliate of Assignee.

The undersigned does hereby certify as to the following:

- a. Rental under the Lease has been paid through September 2021. No rent has been paid more than thirty (30) days in advance, except as described in the preceding sentence. The monthly base rental amount as of the date hereof is \$6203.67.
- b. The term of the Lease terminates on May 31, 2026.
- c. The Landlord is not in default under any terms of the Lease.
- d. Assignor is not in default under any term of the Lease.
- e. The Lease is in full force and effect and there have been no modifications or amendments unless attached hereto.
- f. Exhibit A is a true and correct copy of the Lease with all amendments thereto.

CTC EL MONTE LLC, a Washington
limited liability company.

By: Craig T. Clifford
Name: CRAIG T. CLIFFORD
Title: Member/Manager
LANDLORD

EXHIBIT A
TO
ASSIGNMENT AND ASSUMPTION OF LEASE

711 208

LEASE AGREEMENT

1. PARTIES: THE LEASE AGREEMENT is between David E. Thulin, hereinafter referred to as LESSOR, and WYMODAK, INC., a Florida corporation, herein referred to as LESSEE.

2. PREMISES: LESSOR hereby leases to LESSEE and LESSEE leases from LESSOR, for the term and upon the terms and conditions hereinafter set forth, the premises described in Schedule A at 215 Lincolnway, Cheyenne, WY 82001 and shown on the plot plan which is Schedule B, both of which schedules have been initialled by the parties and are attached hereto and made a part hereof, together with the building and other improvements constructed thereon as herein-after provided, and together with the right to use all adjoining parking areas, driveways, sidewalks, roads, alleys and means of ingress and egress, insofar as LESSOR has the power to lease or license the use thereof. (If Schedule B conflicts with any revised plot plans as hereinafter provided, the revised plot plan shall control.)

2A. PARKING AREA AND COMMON FACILITIES: Except as noted in paragraph 9 herein, LESSOR, throughout the term of this lease, shall maintain and keep the parking area and common facilities of the premises in good order, condition, and repair, including adequate lighting, painting, drainage, supervision, and the like. LESSEE, its customers, and all those having business with it will, in common with other tenants and their customers and others having business with them, have the right to use and enjoy the parking area and common facilities for their intended purposes on an undivided basis. LESSOR agrees to make no additional charge to anyone for use of parking and other common facilities.

3. CONSTRUCTION: LESSOR agrees at LESSOR'S expense to construct on the leased premises a building and other improvements in accordance with plans and specifications approved by LESSEE. LESSOR acknowledges receipt of Set No. 6053 of LESSEE'S standard plans and Set No. 6053 of LESSEE'S standard specifications. The parties agree promptly to obtain an architect's plot plan and, if revision of the plans and specification is necessary, to obtain revised plans and

specifications, the plot plan and any revision to be approved by LESSEE and the cost thereof to be paid by LESSOR. LESSEE'S approval shall be evidenced by the signature of LESSEE'S authorized representative on the plot plan and on the top sheet of one set of plans and specifications. LESSOR agrees on or before December 31, 1987, to complete construction of the building and other improvements in strict accordance with the plot plan and plans and specifications as approved by LESSEE. If without the prior written consent of LESSEE to extend the time for construction, which consent LESSEE shall not unreasonably withhold, LESSOR shall fail to complete the construction on or before the agreed date, LESSEE may enforce specific performance of LESSOR'S covenants and agreements or may pursue any other available legal or equitable remedy. If LESSOR for any reason whatever shall fail to complete the construction before December 31, 1987, LESSEE shall have the option to terminate this lease.

4. TERM: The primary term of this lease shall commence on the first day of the first calendar month following (1) 15 days after the acceptance by LESSEE'S architect of the building and other improvements to be constructed on the demised premises, or (2) the date that LESSEE or its assigns shall first be open for business to the public, whichever event first occurs; and shall continue for a period of 20 years thereafter, unless sooner terminated or extended as hereinafter provided. Should such event occur on other than the first day of a calendar month, LESSEE agrees to pay a proportionate part of the monthly rental herein provided for that month only. LESSEE shall have and is hereby granted a total of 2 successive options to extend the term of this lease for any period of time not exceeding 5 years for each such option upon the same covenants and conditions as herein provided. If LESSEE shall elect to exercise one or more of such options, it shall do so by giving LESSOR written notice at least 90 days prior to the expiration of the primary term or of the then current extension, and in such notice LESSEE shall state the date to which it elects to extend the term.

5. RENT: LESSEE agrees to pay LESSOR or his designee a minimum rental per schedule marked Exhibit "C" per month for each

and every month during the term of this lease, such monthly rental to be paid in advance on or before the fifth day of each month (unless such rental shall be abated or diminished as provided hereinafter). Not later than 60 days after the end of each calendar year, LESSEE shall furnish LESSOR a statement showing the gross sales (computed as hereinafter provided) made in the store on the leased premises during such calendar year. At the time such statement is furnished, LESSEE agrees to pay to LESSOR, as additional rent due hereunder, an amount of money equal to seven ^{changed to 10%} percent of such sales, less the total of the monthly rentals paid during the preceding calendar year and less the amounts paid by LESSEE for real property taxes and for insurance on the leased premises during such year. In computing sales for the purposes of this provision, LESSEE shall take the total amount of all sales of every kind made in its store on the leased premises and deduct therefrom the following to the extent that same are included in such total amount: (1) refunds made to customers, (2) sales, excise and gross receipts taxes, (3) proceeds from sales of money orders (fees received for issuance of money orders shall not be deducted), and (4) proceeds from the sale of gasoline. Such rental payments may be paid by check and sent to LESSOR by ordinary first class mail. LESSEE has paid, and LESSOR acknowledges receipt of, the sum of \$4,000.00 as a deposit with respect to the contemplated leasing of the premises. It is understood and agreed that this amount received as a deposit is to be applied toward the first month rent due herein.

6. USE: The premises may be used for the retail sale of merchandise customarily sold at stores operated by or under franchise from LESSEE or at grocery stores of the type commonly called supermarkets including but not limited to groceries, prepared foods, produce, meat, dairy products, gasoline and petroleum products, and sundries, and for any other lawful purpose.

6A. RIGHT OF APPROVAL: All leases entered into by the lessor on the center in which the subject premises are located shall be subject to the previous written approval of the lessee, which approval shall not be unreasonably withheld.

6B. SIGNS: The LESSEE may place and maintain in and about the premises such neat and appropriate signs advertising its business as it shall desire. Upon termination of this lease, the lessee shall remove all signs and repair any damage to the premises caused by the erection, maintenance or removal of the signs.

7. UTILITIES: LESSEE agrees to pay, before delinquency, all charges for gas, electricity and water used by it.

8. TAXES: LESSEE agrees to pay all taxes levied upon personal property, including trade fixtures and inventory, kept on the leased premises, as well as its portion (per Schedule "B") of taxes levied against the land and the building and improvements situated thereon during the term of this lease, after presentation to LESSEE by LESSOR of statement(s) from the taxing jurisdiction(s) in which said property is located. LESSEE, however, will pay only the lowest discounted amount and will not be required to pay any penalty, interest or cost accruing by reason of LESSOR'S failure to secure said tax statement(s) from the taxing authority (authorities).

LESSOR agrees the LESSEE will not be liable for and LESSOR will forfeit all right to recover said real estate taxes if presentation of statement(s) is not made to LESSEE prior to the date of delinquency. LESSOR may, however, direct the taxing authority (authorities) to send the statement(s) directly to LESSEE. LESSOR further agrees that LESSEE, in the name of LESSOR but at LESSEE'S sole expense, may protest any assessment before any taxing authority or board or maintain any necessary legal action in reference to said assessment or for the recovery of any taxes paid thereon. LESSEE further agrees to an escrow account for real estate taxes if required by LESSOR'S Mortgage Co.

9. MAINTENANCE: LESSOR agrees to maintain the structural soundness of the building. As it pertains to LESSEE'S portion of the center per Schedule "B", LESSEE agrees to keep both the interior and the exterior of the building in good repair, including the roof, plumbing, electrical wiring, air conditioning and heating equipment, to maintain the surface of the parking area, and to paint the exterior walls of the building, stripping

of parking lot and be responsible for all glass, casualty damage and reasonable wear and tear excepted.

10. ALTERATIONS: LESSEE shall not make any alterations involving structural changes without securing LESSOR'S written consent. Other alterations of additions, such as to store front, marquee and non-weight bearing partitions, may be made by LESSEE in a good workmanlike manner without cost to LESSOR.

11. TRADE AND OTHER FIXTURES: LESSEE may install or cause to be installed such equipment and trade and other fixtures as are reasonably necessary for the operation of its business. Such equipment and trade and other fixtures may be installed prior to acceptance of the improvements and shall remain personal property, and title thereto shall continue in the owner thereof, regardless of the manner in which same may be attached or affixed to the demised premises. In the event such equipment and trade or other fixtures are subject to a lien or title retention instrument, the holder of any such lien or title retention instrument shall have the right and be able to enforce the same as stated therein.

12. WAIVER OF SUBROGATION RIGHTS: The parties have considered the apportionment of risk of loss to the premises from fire or other causes covered by standard fire and extended coverage insurance forms, and have determined to apportion that risk of loss by requiring the LESSEE to obtain insurance as described in paragraph 13 herein. In order to effectuate the parties intent that such loss will be provided for by insurance, and that the parties will not look to one another, it is agreed that if the premises shall be destroyed in whole or in part by any cause or causes covered by standard fire and extended coverage insurance form's the LESSEE shall not be liable for or responsible to LESSOR or any insurer or insurers of LESSOR and LESSOR shall not be liable for or responsible to LESSEE or any insurer or insurers of the LESSEE for and in respect of any such damage or destruction, and LESSOR hereby specifically waives any and all right of subrogation which the insurer or insurers may have against LESSEE for such losses, damages or destruction, and

the LESSEE hereby specifically waives any and all right of subrogation which the insurer or insurers may have against the LESSOR for such losses, damages or destruction, all notwithstanding the fact that the same is caused in whole or in part by the neglect or negligence of LESSEE or any of his officers, agents, employees, invitees or otherwise or by the neglect or negligence of LESSOR or any of its officers, agents, employees, invitees or otherwise. It further understood and agreed that in the event that this clause and paragraph should render any insurance coverage null and void, this clause or paragraph shall become ineffective as between the parties hereto.

13. CASUALTY INSURANCE: LESSEE at its expense shall procure and maintain standard fire and extended coverage insurance on the building or buildings leased herein in an amount equal to at least 80% of its insurable value and naming the LESSOR as an additional insured. Such insurance shall be with a company licensed to do business in this State. LESSEE will furnish proof of such insurance to LESSOR.

14. CASUALTY DAMAGE:

A. If, in the opinion of the LESSEE, the leased premises are rendered substantially unfit for the occupancy or use herein contemplated by any casualty or peril insured against in a standard fire and extended coverage insurance policy of the type then commonly purchased by LESSEE (such a casualty or peril being hereinafter referred to as the insurable casualty or peril) and the primary term of the then current extension of the term shall have at least two years to run, LESSEE shall promptly and diligently restore the lease premises to the condition existing prior to the occurrence of the insurable casualty, applying any and all insurance proceeds to such restoration.

B. If, in the opinion of the LESSEE, the leased premises are rendered substantially unfit for the occupancy or use herein contemplated by any casualty or peril other than an insurable casualty, LESSEE, at its sole option, may either promptly and diligently restore the leased premises to the condition existing prior to the occurrence of the casualty or peril, or LESSEE may terminate this lease effective as of the date of the occurrence

of the casualty of peril.

C. If the primary term or the then current extension of the lease shall have less than two years to run and, in the opinion of the LESSEE, the leased premises rendered substantially unfit for occupancy or the use herein contemplated by an insurable casualty or peril, the LESSEE, at its sole option, may either restore the premises at its expense, apply any and all, insurance proceeds toward such restoration, or may terminate this lease effective as of the date of the occurrence of the casualty or peril and the insurance proceeds shall be apportioned between the LESSOR and LESSEE, with the LESSEE being entitled to the same percentage of insurance proceeds as the remaining lease term is a percentage of the entire leasehold.

D. If the premises are damaged, but in the opinion of the LESSEE not to such extent as to render the premises substantially unfit for the occupancy or use herein contemplated from any insurable casualty or peril, LESSEE shall promptly and diligently restore the leased premises at LESSEE'S expense to the condition existing prior to the occurrence of the casualty or peril, applying any and all insurance proceeds to such restoration.

E. If the premises are damaged, in the opinion of the LESSEE, not to such extent and to render the premises substantially unfit for occupancy or use herein contemplated by any casualty or peril other than an insurable casualty or peril, the LESSEE at its sole option, may either promptly and diligently restore the leased premises at LESSEE'S expense to the condition existing prior to the occurrence of the casualty or peril, or declare the lease null and void and cancel and terminate the lease as of the date of the casualty.

15. LIABILITY INSURANCE: LESSEE agrees at LESSEE'S expense to maintain in force continuously throughout the term of this lease and any extension hereof public liability insurance covering the leased premises, with limits of \$500,000.00 (Five Hundred Thousand Dollars) for combined single limit for bodily injury and property damage liability, and shall upon written request of LESSOR furnish LESSOR with a certificate by the insurer that such insurance is in force. LESSEE shall also name

LESSOR as an additional named insured on said liability insurance.

16. COMPLIANCE WITH LAWS: LESSEE will promptly comply with all applicable and valid laws, ordinances and regulations of Federal, State, County, Municipal or other lawful authority pertaining to the use and occupancy of the leased premises.

17. ASSIGNMENT AND SUBLETTING: LESSEE shall have the right to assign or sublease the whole or any part of the demised premises, provided that any assignment or sublease shall be subject to all of the terms and conditions of this lease and that LESSEE shall remain primarily liable for the payment of the rent and for the performance of the terms and conditions of this lease.

18. BANKRUPTCY: Should LESSEE make an assignment for benefit of creditors, or be adjudicated bankrupt, such action shall constitute a breach of the lease for which LESSOR, at its option, may terminate all rights of LESSEE or its successors in interest under this lease.

19. EMINENT DOMAIN: If all of the leased premises are taken under the power of eminent domain or conveyed under threat of condemnation proceedings, or if only a part of such premises are so taken or conveyed and LESSEE shall determine that the remainder is inadequate or unsatisfactory for its purposes, which determination shall not be arbitrarily or capriciously made, then, in either event, this lease shall terminate effective as of the date LESSEE is required to give up the right to occupy or use any part of the leased premises or common areas. The termination of this lease as above provided shall not operate to deprive LESSEE of the right to make claim against the condemning authority for any damages suffered by LESSEE, but LESSEE shall have no right to make any claim against LESSOR because of such termination. If this lease is not terminated as above provided, LESSOR and LESSEE shall agree upon the equitable reduction of the rental. If the parties fail to agree upon such reduction within 60 days from the date of the final award or payment for the part of the leased premises so taken or conveyed, LESSOR and LESSEE shall each choose one arbitrator and the two arbitrators so

chosen shall choose a third arbitrator. The decision of any two of the arbitrators as to the rental reduction, if any, shall be binding on LESSEE and LESSOR and any expense of arbitration shall be divided equally between LESSEE and LESSOR.

20. ATTORNEY'S FEES: If suit is brought to enforce any covenant of this lease or for the breach of any covenant or condition herein contained, the parties hereto agree that the losing party shall pay to the prevailing party a reasonable attorney's fee, which shall be fixed by the court, and court costs.

21. DEFAULT: In the event LESSEE shall default in the payment of the monthly rent as provided herein, LESSOR shall promptly so notify LESSEE in writing, and failure of LESSEE to cure such default within 20 days after receipt of such notice shall, at the option of the LESSOR, work as a forfeiture of this lease, or LESSOR may enforce performance in any manner provided by law, and LESSOR'S agent or attorney shall have the right without further notice or demand to re-enter and remove all persons from LESSOR'S property without being deemed guilty of any manner of trespass and without prejudice to any remedies for arrears of rent or breach of covenant, or LESSOR'S agents or attorney may resume possession of the property and relet the same for the remainder of the term at the best rental such agent or attorney can obtain for the account of LESSEE, who shall pay any deficiency. In the event LESSEE shall default in the performance of any of the terms or provisions of this lease other than the payment of monthly rent, LESSOR shall promptly so notify LESSEE in writing. If LESSEE shall fail to cure such default within 20 days after receipt of such notice, or if the default is of such character as to require more than 20 days to cure and LESSEE shall fail to commence to do so within 20 days after receipt of such notice and thereafter diligently proceed to cure such default, then, in either event, LESSOR may cure such default and such expense shall be added to the rent otherwise due but any such default shall not work as a forfeiture of this lease.

In the event LESSOR shall default in the performance of any of the terms or provisions of this lease (other than any

references dealing with construction of improvements which contain special terms for notice and correction of defaults, if applicable), LESSEE shall promptly so notify LESSOR in writing. If LESSOR shall fail to cure such default within 20 days after receipt of such notice, or if the default is of such character as to require more than 20 days to cure and LESSOR shall fail to commence to do so within 20 days after receipt of such notice and thereafter diligently proceed to cure such default, then, in either such event, LESSEE may cure such default and such expense shall be deducted from the rent otherwise due, or cancel and terminate this lease.

22. RIGHT OF FIRST REFUSAL: If during the term of this lease or any extension thereof, LESSOR shall receive a bona fide offer to purchase the demised premises, which offer is acceptable to LESSOR, LESSOR agrees that LESSEE shall have and is hereby granted an option to purchase the demised premises upon the same terms and provisions. LESSOR agrees immediately after receipt of such offer to give LESSEE notice in writing of the terms and provisions thereof, and that LESSEE may exercise its option to purchase said property at any time within 20 days after such notice is received by LESSEE. If LESSEE shall elect to exercise such option, it shall do so by giving notice in writing to LESSOR within such 20-day period and a contract of sale shall be executed by the parties and title closed within a reasonable time thereafter.

23. LESSOR'S COVENANTS: LESSOR covenants that he has good and marketable title to the demised in fee¹ simple absolute and that the same is subject to no leases, tenancies, agreements, encumbrances, liens, restrictions and defects in title affecting the demised premises or the rights granted LESSEE in this lease; that there are no restrictive covenants, zoning or other ordinances or regulations applicable to the demised premises which will prevent LESSEE from conducting its usual business, including but not limited to retail sales of petroleum products.

24. QUIET ENJOYMENT: LESSEE upon paying the rent and performing the covenants and agreements of this lease shall quietly have, hold and enjoy the demised premises and all rights

granted LESSEE in this lease during the term hereof and extensions hereto, if any.

25. SUBORDINATION: LESSEE hereby agrees that its leasehold interest hereunder is subordinate to the mortgages hereinbefore set out in Paragraph 21. However, any mortgages placed upon the leased premises as of the date of this Agreement shall not be subordinate to the LESSEE'S Lease and each subsequent mortgagee shall expressly covenant or each such mortgage shall expressly provide that so long as the LESSEE is not in default under said Lease Agreement, the LESSEE'S quiet possession of the portion of the premises leased hereunder shall remain undisturbed, on the terms and conditions stated herein, whether or not the mortgage is in default and notwithstanding any foreclosure or other action brought by the holder of the mortgage in connection therewith.

This Subordination Agreement shall be self-operative and no further instrument or certificate of subordination shall be required from LESSEE.

26. RECORDATION: LESSOR and LESSEE shall execute and acknowledge a memorandum or short form lease setting forth the parties, description of the leased premises, term of the lease, options for extension of the term, if any, and any other provision hereof, the inclusion of which shall be mutually agreed upon by LESSOR and LESSEE, which memorandum or short form lease may be filed for public record by any party hereto. However, at the option of either party, a short form or memorandum of lease may be filed by either party at any time after the execution of this lease agreement.

27. NOTICES: Any notices required or permitted hereunder shall be in writing and delivered either in person to the other party or the other party's authorized agent, or by United States Certified Mail, Return Receipt Requested, postage fully prepaid, to the addressees set forth hereinafter, or to such other address as either party may designate in writing and deliver as herein provided.

28. COMPLETE AGREEMENT: This lease contains a complete expression of the agreement between the parties and there are no promises, representations or inducements except such as are

herein provided.

This lease agreement shall inure to the benefit of and be binding upon the parties hereto and their respective heirs, legal representatives, successors and assigns.

LESSOR: DAVID E. THULIN
P.O. Box 1720
Evergreen, CO 80439

LESSEE: WYMODAK, INC.
4100 E. Mississippi Ave.
19th Floor
Denver, CO 80222

IN WITNESS WHEREOF the parties hereto have set their hands and seals this May 29, 1987.

BY LESSOR:

David E. Thulin

David E. Thulin

David E. Thulin

David E. Thulin

BY:

R. Mark Harris
WYMODAK, INC.
President

STATE OF COLORADO

COUNTY OF ARAPAHOE

I HEREBY CERTIFY that on this day before me, an officer duly qualified to take acknowledgements, personally appeared David E. Thulin who executed the foregoing instrument and acknowledged before me that he executed the same.

WITNESS my hand and official seal in the County and State last aforesaid this May 29, 1987.

Richard J. Jones
Notary Public

My Commission Expires:

12-5-87

STATE OF COLORADO

COUNTY OF ARAPAHOE

I HEREBY CERTIFY that on this day before me, an officer duly qualified to take acknowledgements, personally appeared R. Max Hair, to me known to be the person described in and who executed the foregoing instrument and acknowledged before me that he executed the same.

WITNESS my hand and official seal in the County and State last aforesaid this May 29, 1987.

Richard D. Dwyer
Notary Public

2861 So. Kanawha Way
Aurora, Co 80014

My Commission Expires:

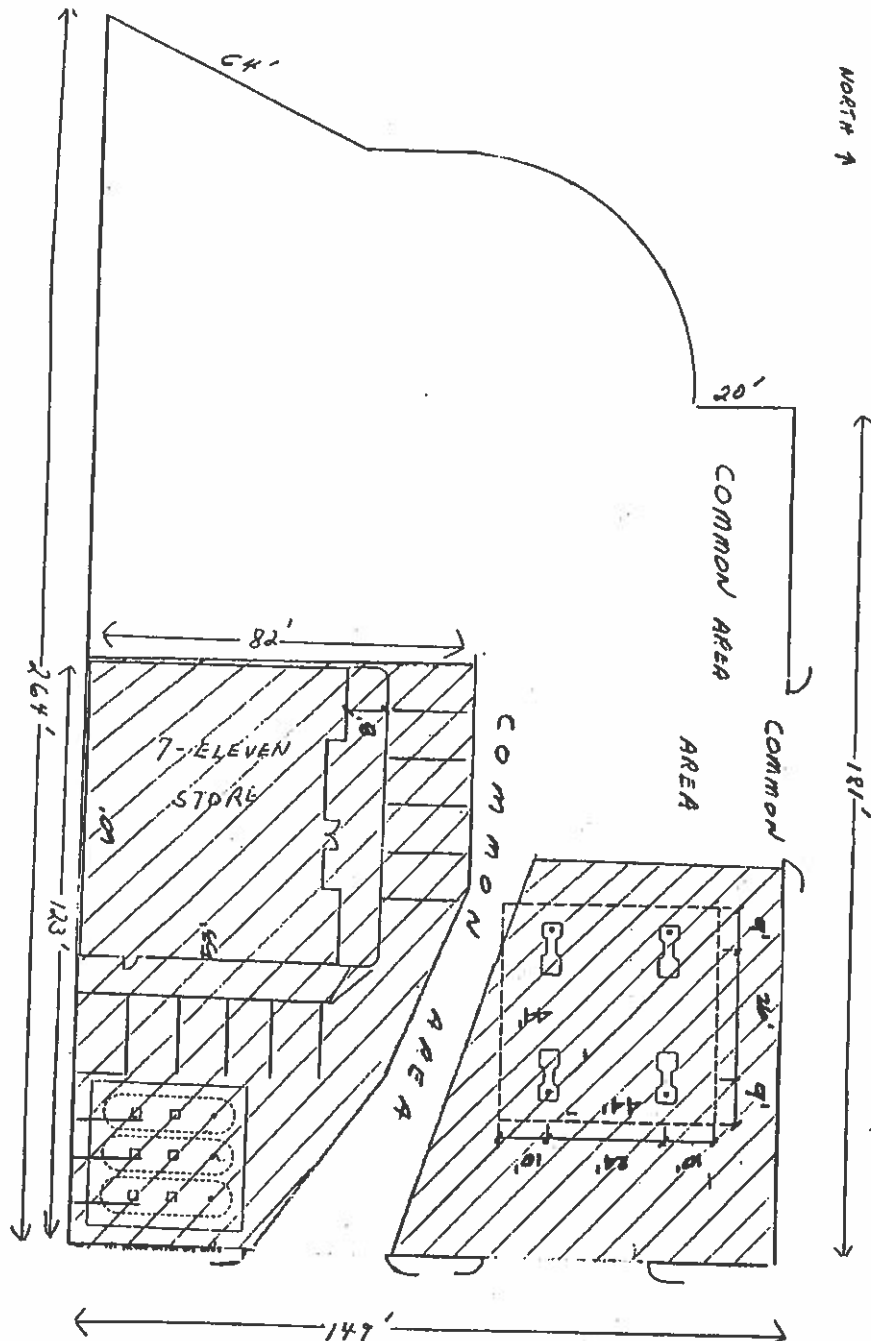
12-5-87

SCHEDULE "A"

CHEYENNE

Lots 1 through 6 and the East 16 feet of Lot 7 and a portion of Lots 8 through 11, Block 420, ORIGINAL TOWN OF CHEYENNE, together with all of the Seller's interest in the 16-foot alley lying adjacent to said lots, County of Laramie, State of Wyoming.

Yemuf



= LESSEE AREAS OF RESPONSIBILITIES

APPROVED BY:
BUYER/LESSOR



DRAWING OF PREMISES AND IMPROVEMENTS - PLOT PLAN

LOCATION OF PROPERTY:

215 LINCOLNWAY
CHEYENNE, WY 82021

**EXHIBIT
B**

ORIGINATORI

E. Town

DATE: 4/2/62

APPROVED:

DATE: _____

SECRET

02

1000 01500017 R/77

EXHIBIT "C" *PMH* *BE*

BASE RENT SCHEDULE

<u>MONTHS</u>	<u>BASE RENTAL RATE PER MONTH</u>
1 - 60	\$4,000.00
61 - 120	\$4,202.00
121 - 180	\$4,416.00
181 - 240	\$4,642.00
241 - 300 (1st Option Period)	\$4,878.00
301 - 350 (2nd Option Period)	\$5,127.00

LEASE ASSIGNMENT AND ASSUMPTION

THIS LEASE ASSIGNMENT AND ASSUMPTION (the "Assignment") is executed and delivered as of the 20th day of May, 1998, by and between Contemporary Industries Corporation (the "Assignor"), a Nevada corporation and debtor and debtor in possession in that certain bankruptcy case pending in the United States Bankruptcy Court for the District of Nebraska, Case No. BK98-80382 (the "Court"), Kum & Go, L.C., an Iowa limited liability company (the "Assignee").

WHEREAS, there exists that certain Lease attached hereto as Exhibit A (the "Lease") of certain premises commonly referred to as: 215 Lincoln Way, Cheyenne, WY 82021 (the "Leased Premises");

WHEREAS, in connection with that certain Asset Purchase Agreement, dated as of April 7, 1998, by and between the Assignor and the Assignee, the Assignee desires to acquire from the Assignor, and the Assignor desires to assign Assignor's rights, title and interest to the Leased Premises; and

WHEREAS, the assumption and assignment of the Lease has been approved pursuant to the Court's Order, dated May 20, 1998.

NOW THEREFORE, in consideration of the agreements and covenants herein set forth, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. The Assignor hereby, assigns, transfers and conveys to the Assignee all of the Assignor's right, title and interest in and to the Leased Premises and delivers possession of the Leased Premises to the Assignee as of the date hereof.
2. The Assignee hereby accepts the foregoing assignment and transfer; and assumes, covenants and agrees to perform all of the Assignor's covenants, obligations, conditions and agreements under the Lease.
3. This Assignment may be executed in multiple counterparts all of which when taken together shall constitute one and the same Assignment.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the Assignor and the Assignee have executed this Assignment as an instrument under seal as of the date first above written.

CONTEMPORARY INDUSTRIES CORPORATION

By: Steven L. Victor
Name: Steven L. Victor
Title: Chief Financial Officer

ACCEPTANCE OF ASSIGNMENT

The undersigned accepts the assignment of the Lease and the Leased Premises described immediately above.

Dated this 20 day of 1998 by:

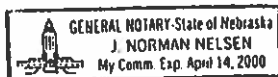
KUM & GO, L.C.

By: Kyle J. Krause
Name: Kyle J. Krause
Title: President

STATE OF Nebraska
COUNTY OF Douglas ss.

Before me, the undersigned Notary Public, on the 20th day of May, 1998,
personally appeared Steven L. Victor, as the Chief Financial Officer of Contemporary Industries
Corporation, known to me to be the person whose name is subscribed to the foregoing instrument
and acknowledged to me that he executed the same for the purposes and consideration therein
expressed, as his free act and deed, before me.

Given under my hand and seal of office this 20th day of May, 1998.



J. Norman Nelsen
Notary Public
My Commission expires: 4-14-2000

STATE OF NEBRASKA
COUNTY OF DOUGLAS ss.

Before me, the undersigned Notary Public, on the 20th day of May, 1998,
personally appeared Kyle J. Krause, as President of Kum & Go, L.C., known to me to be the
person whose name is subscribed to the foregoing instrument and acknowledged to me that (s)he
executed the same for the purposes and consideration therein expressed, as his/her free act and
deed, before me.

Given under my hand and seal of office this 20th day of May, 1998.



J. Norman Nelsen
Notary Public
My Commission expires: 4-14-2000

EXHIBIT A

Assigned and Assumed Lease

NOTICE OF ASSIGNMENT

Date: October 19, 2005

To: Kum & Go, L.C.

Re: K&G #956, Cheyenne WY

Dear Sirs/Madam:

You are hereby notified that on October 19, 2005, we have assigned and transferred to CTC El Monte, LLC, the existing Lease between us:

Lease dated March 12, 2004, for 3,000 s.f. in improvements located at 215 E. 16th Street, Cheyenne, WY

Please direct any further correspondence (or payments, if applicable) to them at the following address:

**CTC El Monte, LLC, a Wyoming Corporation, 818 West Riverside Avenue,
Suite 880, Spokane, WA 99201.**

Please contact us should you have any questions, and we thank you for your cooperation.

Very truly,



David E. Thulin

AMENDMENT TO LEASE

THIS AMENDMENT TO LEASE is made and entered into on or as of the 7th day of May, 2018, by and between CTC EL MONTE LLC ("Landlord"), and KUM & GO, L.C., an Iowa limited liability company ("Tenant"); WITNESSETH:

RECITALS

- A. Tenant leases from Landlord, as successor to Contemporary Industries Corporation, that certain convenience store located at 215 Lincoln Way, Cheyenne, WY 82021, pursuant to a written "Lease Agreement" dated May 29, 1987 and "Lease Assignment and Assumption" dated May 20, 1998, as the same has been amended from time to time (the "Lease").
- B. Landlord and Tenant desire to further amend the Lease as set forth in this Amendment.

NOW, THEREFORE, in consideration of the premises, and the mutual undertakings of the parties set forth herein, the parties agree as follows:

- 1. Definitions. Capitalized terms not otherwise defined herein shall have the same meaning ascribed to them in the Lease.
- 2. Recitals. The Recitals set forth above are incorporated by this reference.
- 3. Term. The parties hereby agree that the current Option Term terminates on May 31, 2018. Lessee is hereby granted the option to renew the Lease for one (1) period of three (3) years, which is deemed exercised by Lessee, and shall commence on June 1, 2018, followed by one (1) period of two (2) years, which may be exercised by Tenant by providing written notice to Landlord no later than one hundred eighty (180) days prior to the expiration of the then current Option Term.
- 4. Rent Increases. Commencing on June 1, 2018, during the three (3) year Option Term, Base Rental during said Option Term shall be ten percent (10%) greater than the Base Rental amount due and payable during the immediately preceding Option Term. Commencing on June 1, 2021, during the two (2) year Option Term, if so exercised by Tenant, Base Rental during such Option Term shall also be ten percent (10%) greater than the Base Rental amount due and payable during the immediately preceding Option Term.
- 5. No Other Modifications. The terms and provisions of the Lease not otherwise modified or amended by this Amendment shall remain in full force and effect. To the extent that there are any conflicts between the Lease and this Amendment,

this Amendment shall govern. The parties do hereby ratify and affirm the Lease as amended by this Amendment.

6. Counterparts, Facsimile. This Amendment may be executed in two or more counterparts, each of which shall be deemed an original, but all of which taken together shall constitute one and the same agreement. For purposes of executing this Amendment, a facsimile signature or other signature transmitted by electronic means shall be as effective as an original signature.

IN WITNESS WHEREOF, the parties hereto have caused this Amendment to Lease to be duly executed on the day and year first above written.

CTC EL MONTE LLC

KUM & GO, L.C.

By: Craig T. Clifford
Its: Manager
CRAIG T. CLIFFORD

By: Niki DePhillips
Its: SVP, Store Development
Niki DePhillips

LANDLORD

TENANT

AMENDMENT TO LEASE

THIS AMENDMENT TO LEASE is made and entered into on or as of the 10th day of November, 2020 (the "Amendment Effective Date"), by and between CTC EL MONTE LLC (hereinafter "Landlord"), and KUM & GO, L.C., an Iowa limited liability company (hereinafter "Tenant"); WITNESSETH:

RECITALS

- A. Tenant leases from Landlord, as successor to Contemporary Industries Corporation, that certain convenience store located at 215 Lincoln Way, Cheyenne, WY 82021, pursuant to that certain "Lease Agreement" dated May 29, 1987 and "Lease Assignment and Assumption" dated May 20, 1998, and "Amendment to Lease" dated May 7, 2018, as the same has been amended from time to time (the "Lease").
- B. Landlord and Tenant desire to further amend the Lease as set forth in this Amendment.

NOW, THEREFORE, in consideration of the premises, and the mutual undertakings of the parties set forth herein, the parties agree as follows:

- 1. Recitals. The Recitals set forth above are incorporated by this reference.
- 2. Lease Term. The parties hereby agree that the current Option Term terminates on May 31, 2021. Tenant is hereby granted the option to renew the Lease for one (1) period of five (5) years, which is deemed exercised by Tenant and shall commence June 1, 2021. The parties hereby further agree to add two (2) additional periods of five (5) years each, of which the new final Extended Term, if exercised by Tenant, terminates on May 31, 2036.
- 3. Rent Increases. Commencing on June 1, 2021 and each additional Option Term, if so exercised by Tenant, Base Rental during such Option Term shall be ten percent (10%) greater than the Base Rental amount due and payable during the immediately preceding Option Term.
- 4. No Other Modifications. The terms and provisions of the Lease not otherwise modified or amended by this Amendment remain in full force and effect. To the extent that there are any conflicts between the Lease and this Amendment, this Amendment shall govern. The parties do hereby ratify and affirm the Lease as amended by this Amendment.
- 5. Counterparts, Facsimile. This Amendment may be executed in two or more counterparts, each of which shall be deemed an original, but all of which taken together shall constitute one and the same agreement. For purposes of executing

this Amendment, a facsimile signature shall be as effective as an actual signature.

IN WITNESS WHEREOF, the parties hereto have caused this Amendment to Lease to be duly executed on the day and year first above written.

CTC EL MONTE LLC

KUM & GO, L.C.

By: *Ernie T. Peliff*
Its: *Managing member*

By: *Niki DePhillips*
Its: *SVP, Stove Development*

LANDLORD

TENANT

AMENDMENT TO LEASE AGREEMENT

THIS AMENDMENT TO LEASE AGREEMENT (this "**Amendment**") is entered into effective as of September 10, 2021 (the "**Effective Date**"), by and among CTC EL MONTE LLC, a Washington limited liability company ("**Current Lessor**"), KUM & GO, L.C., an Iowa limited liability company ("**Current Lessee**"), and BOULDER GS PROPERTIES LLC, a limited liability company ("**Boulder GS**").

RECITALS

This Amendment is made with respect to the following facts:

A. David E. Thulin ("**Original Lessor**"), as lessor, and Wymodak, Inc., a Florida corporation, ("**Original Lessee**"), as lessee, entered into a Lease Agreement dated May 29, 1982 (the "**Original Lease**"), pursuant to which Original Lessee leased certain premises commonly known by the address 215 Lincolnway, Cheyenne, WY 82001 and further described in Schedule A to the Lease (the "**Leased Premises**").

B. Current Lessor is the owner of the Leased Premises and the successor in interest to the Original Lessor under the Original Lease, and Current Lessee is the successor in interest to the Original Lessee under the Original Lease and operates a gas station and convenience store business thereon (the "**Business**").

C. The Lease has been amended by (i) an Amendment to Lease between Current Lessor and Current Lessee dated May 7, 2018 and (ii) an Amendment to Lease between Current Lessor and Current Lessee dated November 10, 2020 (the Original Lease as amended by such amendments, the "**Lease**").

D. Current Lessee and Boulder GS have entered into a Purchase Agreement pursuant to which Current Lessee intends to sell the Business to Boulder GS or to another entity owned by Sukhpreet Singh Bajwa (whether Boulder GS or its assignee, the "**Buyer**") and to assign the Lease to such Buyer.

E. As a material condition to the Buyer's agreement to receive an assignment of the Lease and to purchase the Business, Buyer has requested certain amendments to the Lease, and that Current Lessor and Current Lessee confirm certain facts and circumstances regarding the Lease, as set forth herein.

AGREEMENT

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby covenant and agree as follows:

1. **Initially Capitalized Terms.** All initially capitalized terms used herein and not otherwise expressly defined herein shall have the meanings given to such terms in the Lease.

2. **Amendments Contingent.** Current Lessor and Current Lessee acknowledge and agree that the amendments to the Lease set forth in this Amendment are contingent upon the completion of the sale of the Business and assignment of the Lease to the Buyer (the "Closing"). If the Closing does not occur on or before December 31, 2021 for any reason, this Amendment shall be of no force or effect. Current Lessor and Current Lessee acknowledge that the terms of this Amendment are a material condition to the Buyer's agreement to proceed with the Closing, and accordingly, each agrees that, prior to such date, this Amendment shall be irrevocable and may not be terminated, revoked or modified without the written consent of Boulder GS. At the Closing, Current Lessor and Current Lessee shall deliver to Buyer the Assignment and Assumption of Lease and Landlord Consent attached hereto as **Exhibit C**.

3. **Term/Liability of Current Lessee During Option Terms.**

a. By their signatures below, Current Lessor and Current Lessee confirm that the lease is in full force and effect and has a current term expiring on May 31, 2026 (the "Existing Term"). Notwithstanding anything in the Lease to the contrary, from and after the Closing, Current Lessor agrees that Buyer as the successor to the Current Lessee, shall have the option to extend the term of the Lease for four (4) additional periods of up to five (5) years (each, an "Option Term") thereafter. Each such option may be exercised by Buyer providing written notice to Current Lessor no later than one hundred eighty (180) days prior to the expiration of the then-current term (whether the Existing Term or any Option Term), and in such notice lessee shall state the date to which it elects to extend the term. Upon any failure of Buyer to timely exercise its option to extend, each subsequent option to extend shall expire and terminate.

b. Notwithstanding the assignment of the Lease to Buyer in connection with the Closing per the document attached hereto as **Exhibit C**, as between Current Lessor and Current Lessee, Current Lessee shall remain liable to the Current Lessor for all the obligations of the "lessee" under the Lease during the Existing Term. In the event of a default by Buyer or any successor lessee of the Lease during the Existing Term, Current Lessor and Buyer agree that Current Lessee may cure the default. Upon expiration of the Existing Term, Current Lessee shall have no further obligation or liability whatsoever to the Current Lessor for any obligations under the Lease relating to any Option Term or any other matter occurring after the expiration of the Existing Term. Following the expiration of the Existing Term, Current Lessor agrees to look solely to Buyer or any successor lessee under the Lease for the fulfillment of any and all obligations under the Lease.

4. **Base Rent.** The minimum "Base Rental" under the Lease is currently payable in the amount of \$6203.67 per month, which amount shall remain in effect for the remainder of the Existing Term without adjustment. Following the exercise of each of the Option Terms provided for herein, effective as of the first day of each Option Term, the Base Rental shall increase by ten percent (10%) over the Base Rental amount due and payable during the year immediately preceding the first day of the Option Term..

5. **Additional Rent.** The Current Lessor and the Current Lessee hereby confirm that the additional rent payable based on gross sales from the Premises as provided in Section 5 of the Lease is calculated as the amount, if any, by which three percent (3%) of the lessee's gross sales

from the Premises during the preceding calendar year exceeds: (i) the aggregate amount of the monthly rentals paid by lessee during the applicable calendar year and (ii) the aggregate amounts paid by the lessee for real property taxes and for insurance on the Premises during the applicable calendar year. Gross sales shall be calculated in accordance with the provisions of the Lease, including the exclusion of proceeds from sale of certain categories of products as set forth therein, and for such purposes, the term "gasoline" shall be interpreted to include gasoline of all grades and diesel fuel. For the year of the Closing, the additional rent payable shall be calculated by Current Lessee on a prorated basis through the date of Closing and Current Lessee shall be solely responsible for payment of any such additional rent payable for such partial year.

6. **Notices; Notice Addresses.** From and after the date of the Closing, the notice addresses of the Parties referenced in Section 27 of the Lease shall be as follows:

If to Current Lessor:

CTC EL MONTE LLC,
Attn: Ryan Clifford
818 West Riverside Ave, Suite 660
Spokane, WA 99201

If to Buyer:

Boulder GS Properties, LLC
16141 Fairway Dr.
Commerce City, CO 80022
Attn: Sukhpreet Singh Bajwa

With a copy to:

Maynes Bradford Shipp & Sheftel, LLP
600 Seventeenth Street, Suite 2150-S
Denver, Colorado 80202
Attn: David C. Cripe

In addition to the other methods for providing notice set forth in the Lease, Section 27 of the Lease is hereby amended to allow notice to be provided by a nationally recognized overnight courier service (e.g. FedEx, UPS, USPS) for overnight delivery at the address set forth above, which notice shall be effective as of the next business day.

7. **Deposit.** The deposit made under Section 5 of the Lease has been applied to the first month's rent as set forth therein and Current Lessor is not holding any amounts as a deposit under the Lease.

8. **Complete Agreement.** Except as expressly set forth herein, the Lease shall continue in full force and effect and is unamended. In the event of any conflict or inconsistency between the provisions of the Lease and this Amendment, the provisions of this Amendment shall control in all instances.

9. **Acknowledgement of Assignment.** Current Lessor acknowledges that the assignment of the Lease by Current Lessee to Buyer shall not require any consent or approval of Current Lessor and the Lease, as amended hereby, shall continue in full force and effect following such assignment.

10. **Memorandum.** Attached as Exhibit A to this Lease is a memorandum of short form lease, which will be executed by Current Lessor within ten (10) days of any request by Buyer and shall be recorded in the real property records of the County in which the Premises are located.

11. **Broker.** Current Lessor and Current Lessee represent and warrant that no broker or agent negotiated or was involved in negotiating or consummating this Amendment. Neither party knows of any real estate broker or agent who is or might be entitled to a commission or compensation in connection with this Amendment. Current Lessee and Current Lessor will indemnify and hold each other and Buyer harmless from all damages paid or incurred by the other resulting from any claims asserted against either party by brokers or agents claiming through the other party.

12. **Estoppel Certificate.** The statements made by Current Lessor and Current Lessee in the Estoppel Certificate attached hereto as Exhibit B are hereby incorporated into this Amendment and are acknowledged to be a material condition to the Buyer's assumption of the Lease at Closing. Current Lessor and Current Lessee each agree to provide written notice to Boulder GS of any change in the statements made therein prior to Closing.

13. **Binding Effect.** This Amendment shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns.

14. **Third Party Beneficiary.** Buyer is hereby expressly made third-party beneficiaries of this Amendment.

15. **Severability.** In the event that any one or more of the provisions of this Amendment shall for any reason be held to be invalid or unenforceable, the remaining provisions of this Amendment shall be unimpaired and shall remain in full force and effect and be binding upon the parties hereto.

16. **Headings.** The paragraph headings that appear in this Amendment are for purposes of convenience of reference only and are not in any sense to be construed as modifying the substance of the paragraphs in which they appear.

17. **Counterparts.** This Amendment may be executed in one or more counterparts, each of which will constitute an original, and all of which together shall constitute one and the same agreement. Signatures on a copy of this Amendment which are transmitted by facsimile or by email attachment are valid for all purposes.

18. **Governing Law.** This Amendment shall be governed by and construed in accordance with the laws of the State of Wyoming.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties hereto have executed this Amendment to Lease Agreement as of the day and year first above written.

CURRENT LESSOR:

CTC EL MONTE LLC,
a Washington limited liability company

By: Craig T. Clifford
Name: CRAIG T. CLIFFORD
Its: Manager / Member

BOULDER GS:

BOULDER GS PROPERTIES, LLC,
a Colorado limited liability company

By: Sukhpreet Singh Bajwa
Name: Sukhpreet Singh Bajwa
Its: CEO

CURRENT LESSEE:

KUM & GO L.C.,
an Iowa limited liability company

By: Niki Mason
Name: Niki Mason
Its: SVP, Store Development

Exhibit B

ESTOPPEL CERTIFICATE

Attention: _____

*Re: Lease Agreement dated May 29, 1987, by and between David E. Thulin, as predecessor in interest to CTC El Monte LLC, a Washington limited liability company ("**Current Lessor**") and Wymodak, Inc., as predecessor in interest to Kum & Go, L.C. ("**Current Lessee**") for that certain gas and convenience store premises located at 215 E. Lincolnway, Cheyenne Wyoming (the "**Premises**")*

Ladies and Gentlemen:

The undersigned, as the Current Lessor and Current Lessee parties in interest under the referenced Lease Agreement, each hereby certifies and confirms to and agrees with Boulder GS Properties, LLC and its successors and assigns (collectively, "**Buyer**"), any lenders of Buyer and their respective participants, successors and assigns (collectively, "**Lenders**"), and First American Title Company ("**Title Company**") as follows:

1. A true, correct and complete copy of the Lease Agreement and all amendments to the Lease Agreement and all other agreements modifying or supplementing the Lease Agreement are attached hereto as Exhibit 1 and incorporated herein by reference (collectively, the "**Lease**"). The Lease is the complete and sole agreement between Current Lessor and Current Lessee relating in any way to the Premises. Neither Current Lessor nor Current Lessee has agreed to waive compliance by the other with any provision of the Lease.

2. The Lease commenced on May 29, 1987, and the current term of the Lease is scheduled to expire on May 31, 2026. Current Lessor has no right to terminate the Lease prior to its stated expiration other than as specifically set forth in the Lease with respect to casualty and condemnation. The Lease is in full force and effect and will remain in full force and effect following the assignment thereof to Buyer.

3. The current fixed monthly rent under the Lease is \$6203.67, and Current Lessee has paid rent under the Lease through and including September 2021. Attached as Exhibit 2 are the Tenant's calculation of sales pursuant to Section 5 of the Lease for the purpose of calculating any additional rent payable for the 2019 and 2020 calendar years, and the Current Lessee and Current Lessor agree that such calculations accurately set forth the methodology and product of such Section 5, including the conclusion that no amount has been payable as additional rent in either year.

4. The deposit made pursuant to Section 4 of the Lease was received and was applied to the first month's rent as provided in such section. No security deposit or other amounts are being held by Current Lessor or are required to be deposited under the Lease.

5. All payments due and owing to the Current Lessor under the Lease to the current date have been paid. No monetary obligations of Current Lessee under the Lease, including, without limitation, rent payments have been prepaid or are in arrears.

6. Current Lessor affirms that: (a) there is no default or violations of the Lease by Current Lessor or any fact or circumstance that, with the giving of notice or passage of time would constitute such a default or violation by Current Lessor, and (b) to the best of Current Lessor's knowledge, there is no default or violation by Current Lessee under the Lease, or any fact or circumstance that, with the giving of notice or passage of time would constitute such a default or violation under the Lease. Current Lessee affirms that: (x) there is no default or violation of the Lease by Current Lessee or any fact or circumstance that, with the giving of notice or passage of time would constitute such a default or violation by Current Lessee, and (ii) to the best of Current Lessee's knowledge, there is no default or violation by Current Lessor under the Lease, or any fact or circumstance that, with the giving of notice or passage of time would constitute such a default or violation by Current Lessor. Neither Current Lessor nor Current Lessee has any known claims against the other under the terms of the Lease.

7. Current Lessee's interest under the Lease has not been assigned, by operation of law or otherwise, and no sublease, concession agreement or license covering the Premises or any portion thereof has been entered into by Current Lessee.

8. Current Lessee's Right of First Refusal to purchase the Premises pursuant to Section 22 of the Lease remains in full force and effect and will continue in full force and effect following the assignment of the Lease to Buyer.

9. There are no actions, whether voluntary or otherwise, pending against Current Lessor or Current Lessee under the bankruptcy laws of the United States or any state thereof.

The undersigned understand that this Estoppel Certificate is provided in contemplation of Buyer acquiring the business operated by Current Lessee from the Premises and receiving an assignment of the Lease. Lender will make a loan secured by the assets of such business and the Lease, and Title Company may issue a title policy on Buyer's leasehold interest in the Lease, and each will rely upon the certifications and agreements set forth herein, and each undersigned agrees that Buyer, Lenders, and Title Company, and their respective successors and assigns, may rely upon the certifications and agreements herein for that purpose.

IN WITNESS WHEREOF, the undersigned Current Lessor and the Current Lessee have executed and delivered this Estoppel Certificate as of the date set forth below each's name.

CURRENT LESSOR:

CTC EL MONTE LLC,
a Washington limited liability company

By: Craig T. Clifford
Name: CRAIG T. CLIFFORD
Its: Member/Manager

CURRENT LESSEE:

KUM & GO L.C.,
an Iowa limited liability company

By: Niki Mason
Name: Niki Mason
Its: SVP, Store Development

Date: 9/10/2021

Date: 10/4/2021

EXHIBIT I
To Estoppel Certificate
Lease

See attached

Exhibit A

AFFIDAVIT/MEMORANDUM OF LEASE

This AFFIDAVIT/MEMORANDUM OF LEASE is made with respect to the below-described Lease by and between CTC EL MONTE, LLC, a Washington limited liability company ("**Lessor**") and _____, a Colorado limited liability company ("**Lessee**").

A Lessor is leasing to Lessee certain property situated in the County of Laramie, Wyoming, as more particularly described in Exhibit A attached hereto and incorporated herein by reference (the "**Leased Premises**"), pursuant to that certain Lease originally entered into by and between David E. Thulin ("**Original Lessor**"), as lessor, and Wymodak, Inc., a Florida corporation ("**Original Lessee**"), as lessee, dated May 29, 1987 (the "**Lease**").

B. The Lessor is the current record owner of the Leased Premises and has been assigned the Original Lessor's interest in the Lease and Lessee is the current tenant under the Lease, and is the current holder of the Original Lessee's rights under the Lease pursuant to a series of assignments.

B. The term of the Lease commenced on or about May 29, 1987 and expires on May 31, 2026 unless extended as provided therein. The Lessee has four (4) successive options to extend the term of the lease for periods of time not exceeding five (5) years each.

C The Lease grants to Lessee a right of first refusal with respect to the purchase of the Leased Premises on the terms and conditions set forth therein.

D. Reference is hereby made to copies of the executed Lease and amendments thereto in the possession of the Lessor and Lessee respectively for all the provisions thereof, and by this reference such other provisions are incorporated herein and made a part hereof.

F. Lessor and Lessee acknowledge and agree that this Memorandum supersedes and replaces the prior Affidavit/Memorandum of Lease executed by their predecessors in interest in the Lease and recorded December 27, 1995 in Book 1414 at Page 368.

[Signature and Notary Pages Follow]

IN WITNESS WHEREOF, the parties have executed this Affidavit/Memorandum of Lease this _____ day of _____, 2021.

LESSOR:

CTC EL MONTE LLC,
a Washington limited liability company

By: Craig T. Clifford
Name: CRAIG T. CLIFFORD
Its: MEMBER/MANAGER

LESSEE:

[ASSIGEE NAME],
a Colorado limited liability company

By: _____
Name: _____
Its: _____

STATE OF Washington)
) ss:
COUNTY OF Spokane)

The foregoing instrument was acknowledged before me this 10th day of September, 2021, by Craig T. Clifford, as member/manager of CTC El Monte LLC, a Washington limited liability company.

Witness my hand and official seal.

My commission expires: 10/29/2021

Tricia L Beane
Notary Public



STATE OF _____)
) ss:
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____, 2021, by _____, as _____ of _____, a Colorado limited liability company.

Witness my hand and official seal.

My commission expires: _____

Notary Public

□ 6 inches

WOMEN'S
RESTROOM

MEN'S
RESTROOM

WALK-IN COOLER

ENTRANCE

Secure Entrance to Liquor Sales Room

17A

Proposed ~~Distilling~~ / Sales room
in North East
corner of store
Approx 17x135F
(Proposed) Liquor Sales Room

13B

POS

POS

Cashier Area

EMPLOYEE
ACCESS ONLY

LOTTO

ICE
MACHINE

EMPLOYEE
ACCESS ONLY

OVEN

DEEP
TABLE

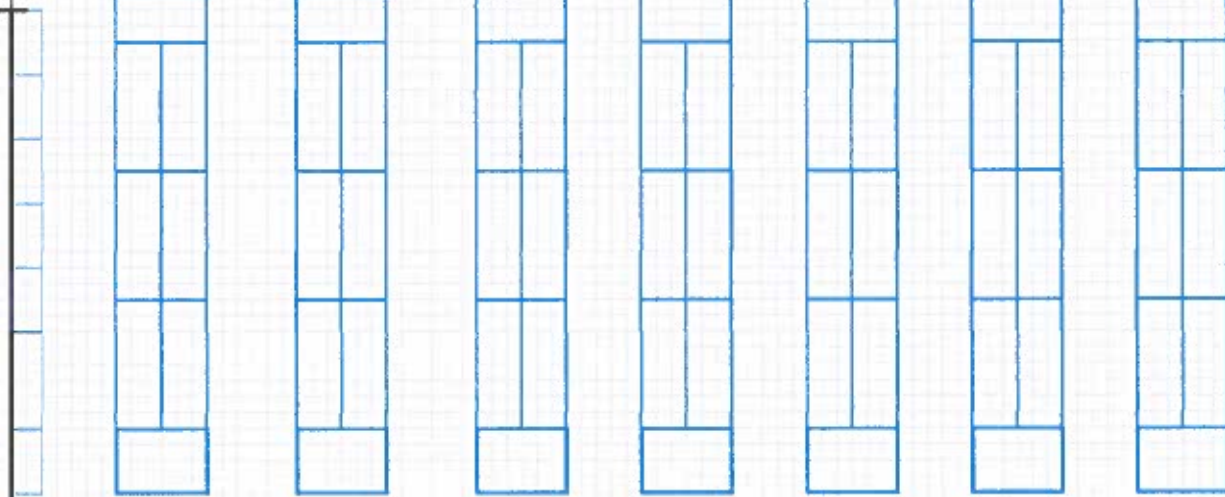
DEEP
TABLE

KITCHEN

BSS

COOL

UTILITY ROOM



STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Cheyenne GS, LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **5th** day of **January, 2022** at **4:56 PM**.

Remainder intentionally left blank.



Filed Date: 01/05/2022



Secretary of State

Filed Online By:

Clint Langer

on 01/05/2022



Wyoming Secretary of State
Herschler Bldg East, Ste.100 & 101
Cheyenne, WY 82002-0020
Ph. 307-777-7311

For Office Use Only
WY Secretary of State
FILED: Jan 5 2022 4:56PM
Original ID: 2022-001067049

Limited Liability Company Articles of Organization

- I. The name of the limited liability company is:**
Cheyenne GS, LLC
- II. The name and physical address of the registered agent of the limited liability company is:**
Registered Agent Solutions, Inc.
125 S King St
PO Box 2922
Jackson, WY 83001
- III. The mailing address of the limited liability company is:**
c/o Hi Market
2806 Speer Blvd
Denver, CO 80211
- IV. The principal office address of the limited liability company is:**
c/o Hi Market
2806 Speer Blvd
Denver, CO 80211
- V. The organizer of the limited liability company is:**
Clint Langer
40 S Main ST, Sheridan, WY 82801

Signature: *Clint Langer* **Date:** 01/05/2022

Print Name: Clint Langer

Title: Organizer

Email: clint@davisandcannon.com

Daytime Phone #: (307) 672-7491

Alcohol Sales Training Summary

Company: Cheyenne GS, LLC (dba Hi Market Cheyenne)

Premises: 215 E. Lincolnway, Cheyenne, WY 82001

License Sought: Retail Liquor License #34 (off-premise/package)

Program & Standard

- Hi Market requires all employees who sell, check ID, or supervise alcohol sales to complete a recognized responsible beverage service course (e.g., TIPS or ServSafe Alcohol) covering: age verification, intoxication recognition/intervention, sales refusal, and Wyoming/City rules.
- Initial training: before any employee performs alcohol sale duties unsupervised, and in all cases within 30 days of hire.
- Refresher training: at least every 3 years or sooner if required by law, material policy changes, or any compliance incident.

ID-Check Policy

- Card anyone who appears under 30.
- Accept only valid, government issued photo ID with date of birth (e.g., driver's license/ID card, passport, military ID).
- Verify authenticity: photo likeness, expiration date, tamper indicators, and age calculation. Use the store's age-verification register prompt/ID scanner where available.
- No sales to anyone under 21 or without acceptable ID.

Refusal & Intoxication

- No sales to intoxicated or disorderly persons.
- Employees must seek a manager's assistance when refusing a sale or if a situation escalates.

Incident & Refusal Logs

- Maintain a Refusal/Incident Log (date, time, clerk, brief facts, action taken).
- Manager reviews logs weekly and uses them for coaching and refresher topics.

Supervision & Accountability

- A trained manager is on duty during alcohol sales hours.
- Training certificates are kept in the Personnel/Training Binder and available for inspection.
- Violations of this policy may result in discipline up to termination.

]

Effective: November 19, 2025

AGREEMENT FOR SALE OF LIQUOR LICENSE

✓ **THIS AGREEMENT** made this 11/05/2025 day of , 20 by
and between:

SELLER: Scooters Scoreboard INC,
and

PURCHASER: Cheyenne GS, LLC, Sukhpreet Bajwa,
(SELLER and PURCHASER will be collectively referred to herein as "the PARTIES")

Property: Cheyenne Retail Liquor License # 34

WITNESSETH:

WHEREAS:

- 1) SELLER is the owner of **Cheyenne Retail Liquor License #34 ("Asset")**
- 1) PURCHASER is the owner of Cheyenne GS, LLC and desires to purchase and SELLER desires to sell the above Asset under the terms and conditions set forth herein; and
- 2) The PARTIES deem it to be in their best interests to formalize their agreements and understandings regarding such sale and purchase by this Agreement.

THEREFORE:

By and for their mutual covenants and agreements herein contained, the SELLER shall sell and convey, and PURCHASER, shall purchase all interest in the Cheyenne Retail Liquor License #34 for a total sum of \$
subject to the terms and conditions herein contained:

- 1) The above recitals are incorporated into this Agreement in their entirety.
- 2) The PURCHASER shall pay to the SELLER for the Asset the sum of \$ _____ cash payable in the following manner:
 - a. _____ cash deposit immediately due upon execution of Letter of Intent and \$135,000.00 cash remainder paid to Town Square Title within 5 business days upon execution of this Agreement. Deposit and remainder to be held in escrow at Town Square Title until closing or failure to close. In the event of failure to close, see 4) Failure to Close.
- 3) Closing:
 - a. Closing will take place immediately following the successful City Council approval of the liquor license transfer to PURCHASER at Town Square Title (TSQ), 719 E 17th St, Cheyenne, WY 82001,

307-632-4414.

- b. At closing, PURCHASER and SELLER will execute all necessary documents required by TSQ.
 - c. SELLER will pay all applicable taxes related to license through date of closing.
 - d. After Closing, PURCHASER will take immediate possession and control of the Asset pursuant to Wyoming Statute and city code and all monies held in escrow will be released to the SELLER.
- 4) Failure to Close:
- a. If Closing does not take place, as described herein, because of a fault by PURCHASER, SELLER may retain \$ _____) deposit, withdraw the License Transfer application and void all documents and this Agreement. \$ _____) remainder held in escrow to be released to PURCHASER.
 - b. If Closing does not take place, as described herein, because of a fault by SELLER, the \$ _____) deposit will be refunded to PURCHASER, all documents voided, the Transfer Application withdrawn and this Agreement voided. \$ _____) remainder held in escrow to be released to PURCHASER.
 - c. If the City does not approve the transfer within 90 days of the closing date, providing the delay is no fault of PURCHASER or SELLER, the Parties may agree to extend this Agreement or either Party may void this Agreement and any documents executed pursuant to this Agreement and Purchasers shall be voided and all monies to be refunded to PURCHASER, including the earnest money deposit.
- 5) License Transfer Procedure:
- a. As soon as practicable after the execution of this Agreement, the PARTIES will submit a Retail Liquor Transfer Application to the City. SELLER and PURCHASER agree to cooperate in good faith, execute any documents, assist and perform any additional acts required to assign and/or transfer the liquor license to PURCHASER, including attending and testifying at City Council hearings.
 - b. City and State fees incurred to assign the liquor license shall be paid by SELLER. Each Party shall be responsible for their own Attorney's fees and due diligence. Both SELLER and PURCHASER understand and agree that their cooperation will be needed throughout the License transfer and agree to cooperate in good faith.
- 6) SELLER warrants it has good and marketable title to all Assets and such assets are, or will be at closing, free and clear of all mortgages, liens, and encumbrances.
- 7) PURCHASER represents, warrants, and agrees that it has been granted every requested opportunity to inspect the Subject Assets and that he accepts the assets in their present condition without warranty, either express or implied, provided however that the warranties set forth herein shall continue and survive the closing.
- 8) Time is of the essence hereof, and if any payment or any other condition hereof is not made, tendered or performed by either the SELLER or PURCHASER as herein provided, then this Agreement, at the option of the PARTY who is not in default or breach, may at that PARTY'S option, be terminated by such PARTY, in which case the non-defaulting PARTY may recover such damages as may be proper or such PARTY may require specific performance of the other herein. In the event, however, the non-breaching or non-defaulting PARTY elects to treat this Agreement as being in full force and effect, then nothing herein shall be construed to prevent its specific performance.

9) This Agreement shall be binding upon and inure to the benefit of the respective PARTIES hereto, their heirs, successors, representatives and assigns and its provisions shall survive closing.

Each PARTY shall be responsible for their own expenses incurred as a result of this transaction other than those enumerated above and their own attorney fees. In the event that any PARTY shall become in default or breach of any of the terms of this Agreement, such defaulting or breaching PARTY shall pay all reasonable attorney's fees and other costs or expenses which the non-breaching or non-defaulting PARTY may incur in enforcing this Agreement with or without suit. This provision shall not limit any other remedies to which the PARTIES may otherwise be entitled.

10) This Agreement sets forth the entire understanding of the PARTIES; there are no oral representations relied upon by any PARTY hereto, which are not specifically set forth herein; this Agreement supersedes any and all previous agreements, and this Agreement may be modified only in writing, executed by the necessary PARTIES hereto.

IN WITNESS WHEREOF, the PARTIES hereto have hereunto set their hands and seals the day and year above first written.

SELLER: SCOOTERS SCOREBOARD INC

By:

Carla M. Winkler

11/04/2025, 04:13:56 PM MST

Carla Winkler, President

Robert Winkler

11/04/2025, 04:25:50 PM MST

Robert Winkler, Vice President

PURCHASER: Cheyenne GS, LLC

By:

Sukhpreet Bajwa

11/05/2025, 07:26:38 AM MST

Sukhpreet Bajwa

18 Nov 2025

TO: Governing Body

FROM: Robert & Carla Winkler

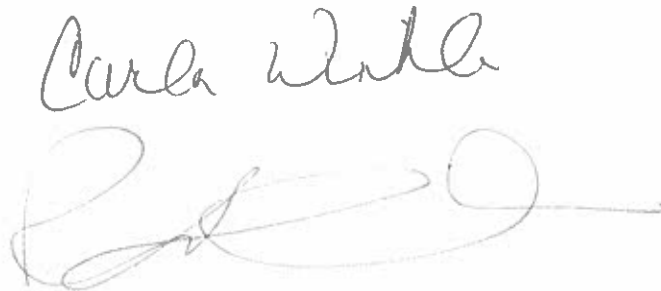
RE: Request to Transfer Liquor License # 34

We request to transfer our liquor license #34 to the owner of Cheyenne GS, LLC, Sukhpreet Bajwa.

Questions can be answered at 307-640-4888 or 307-640-2899

Thank you,

Robert & Carla Winkler

The block contains two handwritten signatures. The first signature, in cursive, reads "Carla Winkler". The second signature is more stylized and appears to be "Robert Winkler".

Lien Search Report

Record Date Range: 1/1/1900 - 11/20/2025

Laramie County
Thursday, November 20, 2025 12:56 PM

Grantor/Grantee: SCOOTERS SCOREBOARD, SCOOTERS SCOREBOARD BAR, SCOOTERS SCOREBOARD BAR ETAL, SCOOTERS SCOREBOARD LLC

Doc #	Recorded	Doc Date	Type	Book	Page	File #	Return Address
Grantor		Grantee					
431254	10/28/2005 11:37 AM	10/24/2005	GOVERNMENT LIEN	1914	161		FILE IN VAULT
				\$1,478.49			
			ORIGINAL CTTY INC ETAL				
Relates To:							
Doc #	Book	Page	Instrument				
454344	1964	348	GOVERNMENT RELEASE				
Notes							
			DOCUMENT TYPE: STATE LIEN				
			507 E LINCOLNWAY CHEYENNE WY 82001				
451204	7/6/2006 9:18 AM	7/5/2006	GOVERNMENT LIEN	1957	1217		VAULT
				\$166.64			
			ORIGINAL CTTY INC ETAL				
Relates To:							
Doc #	Book	Page	Instrument				
452741	1960	1407	GOVERNMENT RELEASE				
Notes							
			DOCUMENT TYPE: STATE LIEN-LIQUOR LC				
			507 E LINCOLNWAY CHEYENNE WY,LIQUOR LICENSE				
452741	7/25/2006 12:32 PM	7/24/2006	GOVERNMENT RELEASE	1960	1407		VAULT
				\$166.64			
			ORIGINAL CTTY INC ETAL				
Notes							
			DOCUMENT TYPE: STATE LIEN RELEASE				
			507 E LINCOLNWAY CHEYENNE WY,LIQUOR LICENSE				
454344	8/11/2006 12:58 PM	7/31/2006	GOVERNMENT RELEASE	1964	348		FILE IN VAULT
				\$1,478.49			
			ORIGINAL CTTY INC ETAL				
Relates From:							
Doc #	Book	Page	Instrument				
431254	1914	161	GOVERNMENT LIEN				
Notes							
			DOCUMENT TYPE: STATE LIEN RELEASE				
			507 E LINCOLNWAY CHEYENNE WY 82001				

Lien Search Report

Record Date Range: 1/1/1900 - 11/20/2025

Laramie County
Thursday, November 20, 2025 12:56 PM

Grantor/Grantee: SCOOTERS SCOREBOARD, SCOOTERS SCOREBOARD BAR, SCOOTERS SCOREBOARD BAR ETAL,
SCOOTERS SCOREBOARD LLC

Doc #	Recorded	Doc Date	Type	Book	Page	File #	Return Address
Grantor							
649586	11/17/2014 12:00 PM	10/9/2014	GOVERNMENT LIEN	2416	953		LARAMIE COUNTY CLERK VAULT
WYOMING DEPARTMENT REVENUE				\$2,037.52			
649587	11/17/2014 12:00 PM	10/9/2014	GOVERNMENT LIEN	2416	954		LARAMIE COUNTY CLERK VAULT
WYOMING DEPARTMENT REVENUE				\$2,037.52			
673458	11/9/2015 3:37 PM	10/15/2015	GOVERNMENT RELEASE	2472	1466		LARAMIE COUNTY CLERK VAULT
WYOMING DEPARTMENT REVENUE							
Relates To:							
Doc #	Book	Page	Instrument				
648923	2414	1692	GOVERNMENT LIEN				
673459	11/9/2015 3:37 PM	10/15/2015	GOVERNMENT RELEASE	2472	1467		LARAMIE COUNTY CLERK VAULT
WYOMING DEPARTMENT REVENUE				\$2,037.72			
Relates To:							
Doc #	Book	Page	Instrument				
648922	2414	1691	GOVERNMENT LIEN				
733215	6/15/2018 12:00 PM	6/13/2018	GOVERNMENT RELEASE	2589	2750		CLERK VAULT
WYOMING EMPLOYMENT TAX DIVISION				\$256.00			
Relates To:							
Doc #	Book	Page	Instrument				
678341	2485	574	GOVERNMENT LIEN				
733216	6/15/2018 12:00 PM	6/13/2018	GOVERNMENT RELEASE	2589	2751		CLERK VAULT
WYOMING DEPT OF WORKFORCE SERVICES				\$256.00			
Relates To:							
Doc #	Book	Page	Instrument				
678342	2485	575	GOVERNMENT LIEN				
733217	6/15/2018 12:00 PM	6/13/2018	GOVERNMENT RELEASE	2589	2752		CLERK VAULT
WYOMING DEPT OF WORKFORCE SERVICES				\$256.00			
Relates To:							
Doc #	Book	Page	Instrument				
678343	2485	576	GOVERNMENT LIEN				

Document Pro

Lien Search Report

Record Date Range: 1/1/1900 - 11/20/2025

Laramie County
Thursday, November 20, 2025 12:56 PM

Grantor/Grantee: SCOOTERS SCOREBOARD, SCOOTERS SCOREBOARD BAR ETAL,
SCOOTERS SCOREBOARD LLC

Doc #	Recorded	Doc Date	Type	Book	Page	File #	Return Address
Grantor		Grantee		Consideration	UCC Description		

A SEARCH OF THE RECORDS OF THIS OFFICE INDICATES THE LISTING BELOW IS A RECORD OF THE PRESENTLY EFFECTIVE FINANCING STATEMENTS AND STATEMENTS OF ASSIGNMENT WHICH WE HAVE FOUND ON RECORD. THE UNDERSIGNED, FOR HIMSELF AND FOR LARAMIE COUNTY, DISCLAIMS ANY WARRANTIES, EXPRESS OR IMPLIED, THAT THE FOREGOING IS ABSOLUTELY EXHAUSTIVE AND CORRECT AND NEITHER SHALL BE LIABLE IN ANY WAY WHATSOEVER FOR ANY LOSS OR DAMAGE OF ANY KIND AS A RESULT OF ANY INACCURACIES OR OMISSIONS WITH REGARD TO THIS ABSTRACT. THE SOLE PURPOSE OF THIS ABSTRACT IS TO ACCOMMODATE PERSONS WHO ARE UNABLE OR UNWILLING TO PERSONALLY EXAMINE THE AFORESAID RECORDS.

CLEARED BY: Debbie Lee
by David Dizon, Chief Clerk

